

SUPPORT ANIMAL POLICY

Association of Apartment Owners of Nā Hale O Mākena
Owner & Resident Notice — Rules, Approval Process & How to Request

This is a review draft for discussion only.

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Adoption

Adopted by the Board of Directors on _____. This Policy supersedes any prior Association policy or practice on assistance or support animals.

Terminology adopted by the Association. This Policy uses the term “**Support Animal**.” The Association of Apartment Owners of Nā Hale O Mākena has **adopted “Support Animal” as its standard term**, and it is **synonymous with “assistance animal”** as that term is used in Hawaii Administrative Rules §12-46-306, Hawaii Revised Statutes Chapter 515, and the federal Fair Housing Act. “Support Animal” carries the same meaning and the same legal scope: it includes service animals, assistance animals, comfort animals, and emotional-support animals. **The change of term is one of naming only** — it narrows no right, removes no protection, and imposes no additional requirement. Wherever a statute, regulation, court or agency decision, form, or letter uses “assistance animal,” that term and “Support Animal” have the same meaning in this Policy and in the Association’s House Rules.

1 About this policy and who it covers

The Association of Apartment Owners of Nā Hale O Mākena (the “Association”) values all of its members, tenants, and guests, including those with Support Animals. The Association complies with fair-housing law — Hawaii Revised Statutes Chapter 515, Hawaii Administrative Rules §12-46-306, and the federal Fair Housing Act (42 U.S.C. §3604(f)) — which require that individuals with disabilities be provided reasonable accommodations that may be necessary for the equal enjoyment and use of their housing.

The Board of Directors has determined that rules governing Support Animals are necessary to administer this accommodation in a fair, systematic, and impartial manner. This Support Animal Policy is issued under the Board’s authority pursuant to Hawaii Revised Statutes Chapter 514B, and the Declaration, the Bylaws (§10.7), and the House Rules of the Association, each as amended.

The Association — through the Resident Manager and the Board of Directors — administers and enforces this policy.

These rules are subject to change at any time by the Board within the framework of the law. **If any provision here appears to conflict with a legal requirement, please bring it to the Association’s attention right away** through the Resident Manager, and it will be reviewed and corrected as appropriate.

This policy applies to all owners, and to owners’ visitors, guests, and tenants, at Nā Hale O Mākena.

A. What is a Support Animal?

As the Hawaii Civil Rights Commission explains, Support Animals are animals that work, assist, or perform tasks for the benefit of a person with a disability. They can also be animals that provide emotional support. Support Animals can include service animals, emotional-support animals, therapy animals, and comfort animals. A Support Animal does not have to be a dog — cats, birds, rabbits, and other animals have been recognized as Support Animals.

Type of animal — subject to Board review. Although a Support Animal need not be a dog, the **species and type of any animal to be kept on the property is subject to Board review.** With a request, the requester must show that a Support Animal is needed to alleviate one or more symptoms of the disability. Where the animal is **not of a species commonly kept in the home**, the requester must also show a **disability-related need for that particular type of animal.** The animal must comply with all Maui County ordinances and any other lawful restrictions on the keeping of animals, and must not pose a direct threat to health or safety or cause substantial physical damage that cannot be reduced by reasonable means. The Board evaluates each request individually and may deny an animal on these grounds; consistent with fair-housing law, it does not deny an animal solely because of its species or breed.

Some animals cannot be approved — even as a Support Animal. Two bodies of public law limit which animals may be kept on the property, regardless of Support-Animal status:

- **Farm animals, livestock, and poultry** — cattle, horses, goats, sheep, pigs (including pot-bellied pigs), llamas, alpacas, chickens, roosters, turkeys, ducks, and geese — may not be kept on the property. Maui County zoning permits the keeping of livestock and poultry only in the Agricultural and Rural districts, not in the urban residential/apartment district in which Nā Hale O Mākena is located.
- **Snakes, invasive species, and other prohibited exotic animals** are illegal to bring into or possess anywhere in Hawaii under State invasive-species law (Hawaii Administrative Rules chapter 4-71 and Hawaii Revised Statutes chapter 150A); certain other non-domestic animals are allowed only by State permit.

Because these animals are prohibited by law, the Association cannot approve them as Support Animals. This narrows no right: fair-housing law does not require a housing provider to permit an animal that is prohibited by law, or that is not a species commonly kept in the home. The Association will continue to evaluate every request for an ordinary assistance animal (such as a dog or cat) individually, and will not deny an animal solely because of its breed. A fuller statement of the governing law appears in the Association’s Legal Reference (Governing Statutes & Regulations), section 2.8.

B. Who is a person with a disability?

As the Hawaii Civil Rights Commission explains, a person with a disability who may request the use of a Support Animal is a person who has a physical or mental impairment that substantially limits one or more major life activities. The person who needs the Support Animal — also called the “handler” — may be a resident, an owner, or a guest.

2 Please read this before you bring any animal onto the property

Nā Hale O Mākena does not allow pets. No dogs, cats, or other pet animals may be kept anywhere on the property. Only fish in an aquarium are permitted as pets.

A Support Animal is not a pet. A Support Animal is a separate category, required by a person with a disability, and it is permitted on the property as a reasonable accommodation under Hawaii and federal fair-

housing law. The pet rule and the Support Animal rule do not conflict: a pet is kept by choice, while a Support Animal is needed for a disability — so the “no pets” rule simply does not reach a Support Animal that has been approved under this policy.

Approval comes first — before the animal arrives. If you have or intend to have a Support Animal, submit your request and obtain approval before bringing the animal onto the property. This allows the Association to complete its review without disruption to you or to your neighbors, and it is what the Association expects.

If an animal arrives before a request has been made, submit the request promptly. Where the animal qualifies under this Policy, the Association will consider the request on its merits and will not treat the timing as a violation. The conduct rules in Section 3 apply from the moment the animal is on the property.

If the Association asks the owner of an animal already on the property to submit a request, the owner must do so within ten (10) days. The Resident Manager may allow additional time for the owner to fully comply in special cases, but not more than fourteen (14) additional days. An animal that does not qualify under this Policy, or whose owner does not submit the request within the time allowed, is not permitted on the property, and the owner may be required to remove the animal from the property. (One narrow exception for short-term guests appears in Section 5.)

3 The rules your Support Animal must follow

An approved Support Animal is welcome. In return, the person who keeps it (the “handler”) is responsible for the animal’s behavior at all times. These rules apply to the animal’s conduct, not to its type or breed:

- **Leashed or tethered outside your unit.** Whenever the animal is outside your unit — in any common area, hallway, lobby, walkway, or grounds — it must be on a leash, tethered, caged, or carried and kept under your control. The leash or tether must be **no more than six (6) feet** and held in your hand; an **electric shock collar is not a substitute** for a leash or harness. See the box below if your disability makes leashing impracticable.
- **Never unattended.** The animal must never be allowed to roam free, and must not be left unattended, anywhere on the common elements.
- **Coming and going.** When entering or leaving the property, the animal must be carried, in an approved carrier, or on a short hand-held leash.
- **At the pool and cabana.** In the pool and cabana area, the animal must be under your control and may be on the deck, but a **dog may not enter the swimming pool**. The animal is **absolutely prohibited from urinating or defecating in the pool or cabana areas**; even an unintended or accidental incident may be subject to a fine.
- **Noise.** The animal must not create excessive noise. Barking, howling, whining, or other animal sounds are excessive when they continue for one (1) minute without interruption, or intermittently for five (5)

minutes or more, and disturb another person — whether in another unit or in a common area, at any time of day or night — unless the sound results from a trespass or threatened trespass on the property, or from a person teasing or provoking the animal. During quiet hours (9:00 p.m. to 8:00 a.m.), animal sound that is plainly audible anywhere within another unit — including its lanai — is excessive regardless of duration. Undertaking training, or enrolling the animal in a training program, does not by itself excuse a continuing noise violation; the owner remains responsible for actually preventing the animal from creating excessive noise, and a violation that continues remains subject to the Association’s fine and enforcement policies in the House Rules, applied the same way as for any other resident. The Association may document instances and refer them to the Humane Society.

- **Waste.** Clean up after the animal immediately: carry a bag, pick up the waste, seal the bag, and deposit it in a trash container. Do not let waste accumulate, and clean lanais and patios so they do not create odors that disturb others.
- **No washing on the common elements.** The animal may not be washed anywhere on the property except inside your own unit.
- **No nuisance or aggression.** The animal must not create a nuisance through odor, and must not behave aggressively toward any person or other animal. Where a Support Animal has behaved aggressively, the Association may require that the animal be muzzled whenever it is in the common areas, in addition to any other individualized measure. If muzzling and other reasonable measures cannot reduce or eliminate the threat, the animal is subject to removal under the standard in Section 4.
- **Licensing & health.** Keep the animal licensed with the County of Maui if required, and keep its vaccinations current. Provide documentation on request.
- **Liability and indemnification.** The Association assumes no liability for any event or incident arising from a Support Animal’s behavior. The handler is liable for any injury or damage of any kind caused by the Support Animal, and shall pay the injured or damaged party all costs incurred as a result. Where the handler is not the owner of the apartment in which the animal is kept, the apartment owner is liable jointly with the handler. The handler and the apartment owner further agree to indemnify, hold harmless, and defend the Association, its Board of Directors, officers, the Managing Agent, and the Resident Manager against every claim, judgment, expense (including costs and reasonable attorneys’ fees), and liability asserted by any third party for injury to any person or damage to property of any kind caused by the Support Animal.

Relief areas. The Association designates on-property relief areas for Support Animals, recommended by the Resident Manager and approved by the Board. The designated relief areas are identified on the NHOM condominium map maintained by the Resident Manager. Relief must occur within the handler’s unit, off property, or at a designated relief area, and is not permitted elsewhere on the common elements. The waste rules in this Section apply at all times — immediate pickup, sealed disposal, and no accumulation. On the Resident Manager’s recommendation, the Board may add, move, or remove designated relief areas.

If your disability makes leashing impracticable. Leashing or tethering is the rule. If the nature of your disability makes physical control impracticable, or physical control would interfere with the assistance the animal provides, you may instead keep the animal under voice control, signals, or other effective means. Where that is not readily apparent, the Association may ask for a letter from your treating health-care professional, mental-health professional, or social worker confirming that physical control is impracticable or would interfere with the animal's assistance; the letter need not state your diagnosis. Effective control is required at all times. An animal that gets loose, does not respond, or approaches or interferes with another person or animal is not under effective control, and the Association may require that it be leashed or tethered whenever it is outside your unit.

Unattended animals. A Support Animal may not be left unattended anywhere on the common elements at any time, and may not be left unattended in an apartment for more than twenty-four (24) hours. Where the Association has reasonable cause to believe that a Support Animal is alone in an apartment and is creating a disturbance or is in distress, or that any other emergency exists with respect to the animal, the Association will attempt to reach, in this order: (a) the handler or resident; (b) the alternative animal caretaker on file; and (c) if the apartment is not owner-occupied, the owner of the apartment. If none of them can be reached within a reasonable period, the Association may enter the apartment as an emergency entry under By-Laws Section 10.1-Right of Access, and House Rules Section 8.1.2-Secondary Access When the Owner Is Absent, and may make the arrangements necessary for the animal's safety and care, including removal to a licensed veterinarian or animal shelter. The owner of the apartment is responsible for any cost the Association incurs. The Association will notify the handler and the apartment owner of the entry and of what was done as soon as reasonably possible, and will record the entry in the Association's records.

4 What happens if the rules are not followed

The Association does not remove a Support Animal lightly, and never because of its breed, size, or weight as such (but see paragraph 3 regarding property damage). If a problem arises with the animal's behavior:

1. You will receive **written notice** describing the specific problem.
2. You will be given a **reasonable opportunity to correct it** by measures short of removing the animal, agreed through the interactive process. For a noise violation, appropriate corrective measures include keeping the animal away from shared walls and units; not leaving the animal alone during the periods it tends to bark; and anti-bark training and appropriate training aids.
3. Removal may be required **only** if the problem cannot be corrected — that is, if the animal is out of control and not effectively controlled, poses a direct threat to health or safety that cannot be reduced by other means, or **would cause, or may reasonably be expected to cause, substantial physical damage to units, common elements, or the property of others that cannot be reduced by other means.** An individualized assessment of that risk may take the specific animal's size or weight into account; size or weight is never a basis for removal by itself.

4. Rule violations may also be enforced through the House Rules, including fines, following the House Rules procedure.

5 How to get your Support Animal approved — step by step

Here is the whole process, from request to move-in:

If your disability and your need for the animal are obvious. Where both your disability and your disability-related need for the animal are readily apparent, no request for accommodation is required and no verification will be requested. The Association asks — but does not require as a condition of keeping the animal — that you give the Resident Manager the animal's description, proof of County licensing if required, and current vaccination records, so that the Association's records are complete. Whether both your disability and your need are readily apparent is determined by the Resident Manager; if either is not clearly apparent, the standard request process below applies. Where your disability is readily apparent but your need for the animal is not, or the reverse, verification will be requested only as to the point that is not apparent.

1

Submit your request — before the animal comes on property. A request must be made in **writing on the Support Animal Request Form** (a separate fillable form accompanies this notice); the Association does not accept oral requests. The form is available on the **Association website (www.nhomaoao.com)** and at the **Resident Manager's office on the property**. If you need help completing the form, or have questions about the request process, contact the Resident Manager. Completing and submitting the form is the **sole responsibility of the support animal owner**; contacting the Resident Manager for assistance does not replace submitting the completed form.

2

Provide verification — only if we ask, and only if needed. If your disability, or your need for the animal, is not obvious, the Association may ask you for a short letter from your treating health-care professional, mental-health professional, or social worker confirming just two things: that you have a disability, and that the animal helps with it. **We will not ask for your diagnosis, your medical records, access to your doctor, or proof that the animal is trained or certified.**

3

The Resident Manager decides. Each request is decided by the **Resident Manager**, who circulates it to the Board by email for comment; the Board's comments are advisory, and the decision remains the Resident Manager's. Where the request clearly qualifies, the Resident Manager may decide promptly after a brief comment period; where the Resident Manager is inclined to deny the request, or the request presents any doubt, the Resident Manager circulates it to the Board for comment before deciding. The Association will **acknowledge your request within five business days** and **decide within thirty days**. The Resident Manager documents each decision and the reasons for it, and you will receive the decision in writing.

4 The Support Animal Agreement and your records. You sign the **Support Animal Agreement** — a separate document — **at the time you submit your request.** In it you acknowledge the conduct rules in Section 3 and accept the **Liability and Indemnification** provision. The acknowledgment of the conduct rules is requested and any refusal is documented, but approval of a qualifying animal does not depend on it; **your signature on the Liability and Indemnification provision is required.** On approval, you provide proof of County licensing (if required) and current vaccinations.

5 Your animal may come on property. Once approved and the paperwork is complete, your Support Animal may live with you at Nā Hale O Mākena. You will not be asked to re-verify a disability that is established and ongoing.

Alternative animal caretaker. With your request, and whenever it changes, you may give the Resident Manager the name, address, telephone number, and email of an **alternative animal caretaker** — a person able to take responsibility for your Support Animal if you are unavailable, unable to care for it, or away from the property. Naming an alternative animal caretaker is **not a condition of approval**, and you will not be asked why one is or is not named. Where an alternative animal caretaker is on file, that is the contact the Association will use before taking any step under the **Unattended animals** provision in Section 3.

What the Association may not ask you. By law, the Association may not ask for your diagnosis or the nature or severity of your disability, may not ask for medical records or to contact your health-care provider, and may not require that your animal be professionally trained, certified, or registered. No online “registration” or certificate is required or recognized, and none is a substitute for the simple verification described in Step 2. Because a Support Animal is not a pet, the Association charges no pet fee, pet rent, or pet deposit for it; you remain responsible for any damage the animal causes.

Short-term guests. This provision applies only to a genuine guest of an owner or resident; the guest must not themselves be an owner or a resident of the property. An owner or a resident of the property (including a tenant) is subject to the full requirements of this Policy, including where present only temporarily.

A qualifying guest who needs a Support Animal for a short stay does not have to go through the full Board process. The Resident Manager may approve the guest’s Support Animal on a case-by-case basis for up to **fourteen (14) days** — particularly where the guest’s disability and need for the animal are readily apparent, in which case no verification is requested. The animal must follow all House Rules and all conduct rules in Section 3 while on the property.

Notwithstanding the licensing-and-health requirement in Section 3: **proof of County licensing is not required** (the County exempts a nonresident’s dog kept in the County for no longer than sixty (60) days). **Proof of vaccination is not required where the animal was imported from off-island**, because current vaccination is a condition of bringing an animal into the State. Where the animal was **not** imported — for example, it belongs to a permanent island resident — current vaccination records must be provided to the

Resident Manager. The Resident Manager may ask the guest to confirm the animal was brought into the State under its animal-import requirements.

A stay expected to exceed two weeks, or a repeated pattern of guest stays, is handled through the Board's normal approval process above.

6 Questions

Direct any question about this policy or the request process to the Resident Manager at **managernhom@hotmail.com**. Keep this notice with your association documents.

Adoption

This Support Animal Policy was adopted by majority vote of the Board of Directors of the Association of Apartment Owners of Nā Hale O Mākena at a duly noticed meeting held on the _____ day of _____, 20____, at which a quorum was present, under the authority of Hawaii Revised Statutes Chapter 514B, the Declaration, the By-Laws (Section 10.7-Animals), and the House Rules of the Association. This Policy is recorded in the minutes of that meeting and included in the records of the Association.

Association of Apartment Owners of Nā Hale O Mākena

By: _____ Its: _____

Print name: _____ Date: _____